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IN THE CIRCUIT COURT, FOURTH
JUDICIAL CIRCUIT, IN AND FOR
DUVAL COUNTY, FLORIDA

CASE NO.: 23-CA-008801

STEFEN WYNN,

Plaintiff,

vs.

CITY OF NEPTUNE BEACH,

Defendant.

_____/

DEFENDANT, CITY OF NEPTUNE BEACH'S MOTION TO DISMISS COMPLAINT

Defendant, CITY OF NEPTUNE BEACH ("the City"), pursuant to Fla. R. Civ. P. 1.140(b)(6), moves the Court to enter an order dismissing Plaintiff's Complaint for failure to state a cause of action. Alternatively, pursuant to Fla. R. Civ. P. 1.140(e), the City moves the Court for an Order directing Plaintiff to provide a more definite statement. Finally, the City moves to strike immaterial allegations from the Complaint. This motion is based on the following grounds:

1. The Complaint is filed by a former manager for the City who claims he was the victim of retaliation after making reports to various City employees or individuals affiliated with the City.

2. Plaintiff sues the City pursuant to Florida Statute § 112.3187, the Florida Whistleblower Act ("the Whistleblower Act"), and alleges one count of retaliation. The express legislative intent of the Whistleblower Act is, in part, "to prevent agencies . . . from taking retaliatory action against any person who discloses information to an appropriate agency alleging

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improper use of governmental office, gross waste of funds, or any other abuse or gross neglect of duty on the part of an agency, public officer, or employee." § 112.3187(2).

3. To achieve that purpose, the Whistleblower Act provides protection to certain employees who, among other things, disclose specific protected information on their own initiative in a written and signed complaint, who are requested to participate in an investigation, or who refuse to participate in an adverse action prohibited by § 112.3187. *See* § 112.3187(7).

4. Based on the allegations in the Complaint, it appears Plaintiff's claim is based upon his alleged disclosure of specific protected information in a written and signed complaint. *See* § 112.3187(5), (7). The City has therefore analyzed Plaintiff's claims on that basis. If Plaintiff's claim is based in whole or in part on other protected conduct, namely being requested to participate in "an investigation, hearing, or other inquiry conducted by any agency or federal government entity," more clarity is required for the City to be able to respond to those allegations. *See* § 112.3187(7), *Complaint* ¶¶ 47-49.

5. For disclosures concerning a local government entity, the Whistleblower Act requires that the protected information be disclosed to "a chief executive officer as defined in s. 447.203(9) or other appropriate local official." § 112.3187(6). "Chief executive officer" is defined as ". . . the person, whether elected or appointed, who is responsible to the legislative body of the public employer for the administration of the governmental affairs of the public employer." § 112.3187(9), Fla. Stat.

6. Plaintiff's Complaint attempts to allege what appear to be eight disclosures which fall under the protection of the Whistleblower Act. *Complaint* ¶¶ 9, 10, 11, 14, 15, 16, 26, 35-36. Because each of these attempts fail to meet the statutory requirements, Plaintiff has failed to state a claim for retaliation under the Whistleblower Act.

7. Plaintiff's Complaint alleges in paragraph 9 that he "submitted a written complaint . . . "to Defendant's City Auditors" "regarding fraud in its building and permit department." It is not clear which "City Auditors" Plaintiff is referencing, what their relationship with the City is, to which auditor or auditors he made this alleged protected disclosure, much less whether they are an appropriate local official,[1] or what, exactly Plaintiff reported. Plaintiff also fails to allege that this complaint was signed, a requirement for protection under the Whistleblower Act. § 112.3187(7), Fla. Stat.

8. Plaintiff alleges in paragraph 9 that he "told the City Council about this report both verbally and, upon information and belief, in an email." However, non-written disclosures cannot be considered in determining whether Plaintiff engaged in a protected activity, as they do not fall within the purview of the statute. Furthermore, Plaintiff's allegation of secondhand knowledge of an email he may or may not have sent to the City Council fails to meet the Whistleblower Act's requirement that the disclosure be in writing and signed.

9. In paragraph 10, Plaintiff alleges that he reported mismanagement of funds "both verbally and in writing in August, 2022." Plaintiff again fails to allege that this "writing" was signed, to whom this "writing" was submitted, or what, exactly, Plaintiff reported.

10. In paragraph 11, Plaintiff alleges that he made verbal "reports of a potential conflict of interest" to police department Commander Michael Key. This allegation fails to describe a protected disclosure not only because it was a verbal report which cannot be considered in determining whether Plaintiff engaged in a protected activity, but also because Commander Key is not a chief executive officer or other appropriate local official for the City.

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[1] The phrase, "other appropriate local official," has been interpreted to mean "an official or official entity who is affiliated with the violating governmental entity and has the authority to investigate, police, manage, or otherwise remedy the violation or act by the violating governmental entity." *Rustowicz v. N. Broward Hosp. Dist.*, 174 So.3d 414, 424 (Fla. 4th DCA 2015).

11. In paragraph 14, Plaintiff alleges that he reported this conflict of interest to the Police Chief during a meeting. This allegation similarly fails to describe a protected disclosure, not only because it involves a verbal report, but also because the Police Chief is not a chief executive officer or other appropriate local official for the City.

12. In paragraph 15, Plaintiff alleges that he "stated to the Chief that Commander Key and Councilor Key were committing a crime by abusing and overspending Defendant's police budget." To the extent this describes an alleged disclosure, it, too, is insufficient. Verbal reports cannot be considered in the determination as to whether Plaintiff engaged in a protected activity.

13. In paragraph 16, Plaintiff alleges that he "reported Commander Key's refusal to follow proper budgetary protocols." However, Plaintiff fails to allege how he reported this refusal, to whom he reported it, or what, exactly, he reported.

14. In paragraphs 26 and 27, Plaintiff alleges that he reported to and discussed with Mayor Elaine Brown "all that had transpired between Councilor Key and Plaintiff." To the extent this is an alleged protected disclosure, it is deficient because Plaintiff does not state (although presumably) he made this report verbally, and because it does not allege disclosure of information of the nature that receives protection under the Whistleblower Act.

15. In paragraphs 35 and 36, Plaintiff alleges that he submitted "another written complaint" to the City Attorney, the City's Chief Financial Officer, and the entire City council detailing how he had been harassed by Council Key at a prior Council meeting. This allegation is also deficient for several reasons. First, the information is not of the nature that receives protection under the Whistleblower Act. Second, Plaintiff does not allege that the written disclosure was signed as the Whistleblower Act requires.

16. The pleading deficiencies in the Complaint render it vague and prevent the City from providing a response. They do not allege exactly *what* Plaintiff reported when he blew the whistle, *when* those reports were made, and *to whom* he made the reports.

17. Plaintiff's Complaint should be dismissed because it fails to comply with the minimal pleading requirements set forth in Rule 1.110 of the Florida Rules of Civil Procedure, particularly Rule 1.110(b), which requires "a short and plain statement of the ultimate facts showing that the pleader is entitled to relief."

18. Finally, the Complaint fails to allege that the Plaintiff timely complied with the pre-suit requirements of §112.3187(8)(b) or (c). According to that subsection, a prospective Plaintiff must file a complaint with the local government authority if it has established, by ordinance, an administrative procedure for handling such complaints 112.3187(8), Florida Statutes. This must be done before filing suit. If the local government has not established an administrative procedure by ordinance or contract for handling whistleblower complaints, then the aggrieved employee may file his complaint in Circuit Court "within 180 days after the action prohibited by this section." §112.3187(8)(c). These facts must be pleaded so that the Court can determine whether the claims are ripe to be heard by the Court and whether the Court has jurisdiction over the claims.

19. For those disclosures Plaintiff alleges he made through a written complaint, the Complaint fails to comply with the requirements set out in Fla. R. Civ. P. 1.130(a) ("…all . . . documents on which action may be brought … material to the pleadings, must be incorporated in or attached to the pleading."). The written complaint(s) on which Mr. Wynn's Whistleblower Act claim is based should be attached to the Complaint so that the Court may discern the timeliness of filing this lawsuit and whether it has jurisdiction over the dispute.

20. Finally, in paragraph 42, Plaintiff alleges that after he was terminated, "upon information and belief," the City is "giving Plaintiff bad employment references hindering Plaintiff's ability to secure alternative employment." This paragraph should be stricken because it has no bearing on the allegations in the retaliation count. The City cannot legally be held liable under Chapter 112 for actions that take place after an employee is no longer employed. Because Paragraph 30 is "…immaterial, impertinent, or scandalous" it meets the standard of being stricken contained in Rule 1.140(f), Fla. R. Civ. P.

CERTIFICATE OF SERVICE

I CERTIFY that on this 5th day of September, 2023, I electronically filed the foregoing with the Florida Court's E-Filing Portal, which will serve it on the following counsel of record by Electronic mail:

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